

OFFICE OF THE SECRETARY

P.O. Box 942883
Sacramento, CA 94283-0001



October 1, 2018

Honorable Charles A. Chung
Judge of the Superior Court
County of Los Angeles
42011 4th Street West
Lancaster, CA 93534-7185

Re: Jackson, Shawn Stewart
CDC No.: E61401
Case No.: MA051433-01
Date of Sentence: 7/27/2011

Dear Honorable Charles A. Chung:

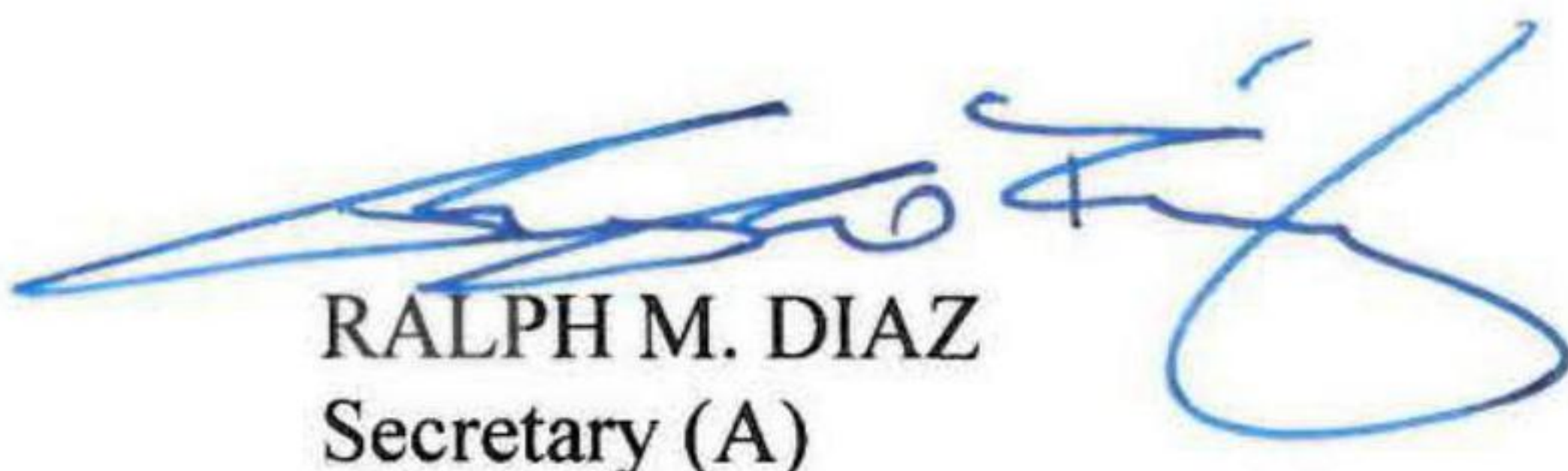
The purpose of this letter is to provide the court with authority to resentence Shawn Stewart Jackson pursuant to Penal Code Section 1170, subdivision (d). This section provides that, upon recommendation of the Secretary of the California Department of Corrections and Rehabilitation, the court may recall a previously ordered sentence and commitment, and resentence the defendant in the same manner as if he or she had not previously been sentenced, provided the new sentence is no greater than the initial sentence.

Inmate Jackson was sentenced in 2011, and was convicted of section 245, subdivision (A)(2), ASSAULT WITH A FIREARM. The trial court sentenced inmate Jackson on 7/27/2011. At sentencing, the trial court imposed two sentence enhancements: 12022.7 and 186.22, subdivision (b)(1)(C). Both sentence enhancements were attached to Inmate Jackson's section 245 offense. (See attached abstract.)

In light of the above, please consider *People v. Gonzalez* ((2009) 178 Cal.App.4th 1325. In *People v. Gonzalez*, the appellate court held the trial court should not have imposed sentence enhancements under section 12022.7, subdivision (a) and section 186.22, subdivision (b)(1)(C) because both sentence enhancements were based on the great bodily injury the defendant caused while committing the underlying offense. (*Id.* at p. 1332.)

Based on the above facts and case law, it appears that inmate Jackson's sentence warrants the attention of the court. Pursuant to Section 1170, subdivision (d), as the Secretary, I recommend the inmate's sentence be recalled and that he be resented in accordance with the cited authority.

Sincerely,

A blue ink signature of Ralph M. Diaz, written in a cursive style.

RALPH M. DIAZ
Secretary (A)

Enclosures:

Abstract of Judgment-Prison Commitment-Determinate
Minute Order
Information/Complaint

cc: Honorable Daniel J. Buckley, Los Angeles County Presiding Judge
Los Angeles District Attorney
Public Defender

CDR# E61401

OK TO GO STWD NOTED
August 4, 11 DC

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - INDETERMINATE

[NOT VALID WITHOUT COMPLETED PAGE TWO OF CR-292 ATTACHED]

CR-292

SUPERIOR COURT OF CALIFORNIA, COUNTY OF: LOS ANGELES, NORTH DISTRICT		
PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SHAWN STEWART JACKSON	DOB: 02-17-71	MA051433-01 -A
AKA: SHAWN EARL JACKSON, et al		-B
CII NO.: A07465214		-C
BOOKING NO.: 2592792	☐ NOT PRESENT	ENTERED NO OBISD
COMMITMENT TO STATE PRISON ABSTRACT OF JUDGMENT	☐ AMENDED ABSTRACT	
DATE OF HEARING 07-27-11	DEPT. NO. A20	JUDGE CHARLES A. CHUNG
CLERK ERIN HEINER	REPORTER DONNA PARRISH	PROBATION NO. OR PROBATION OFFICER X323668 ☐ IMMEDIATE SENTENCING
COUNSEL FOR PEOPLE RACHEL R. BOWERS	COUNSEL FOR DEFENDANT THOMAS GORDON, P.D.	☒ APPTD.

1. Defendant was convicted of the commission of the following felonies:

☐ Additional counts are listed on attachment
 (number of pages attached)

COUNT	CODE	SECTION NO.	CRIME	YEAR CRIME COMMITTED	DATE OF CONVICTION (MO./DATE/YEAR)	CONVICTED BY			CONCURRENT	CONSECUTIVE	654 STAY
						JURY	COURT	PLEA			
* 03	PC	245(A)(2)	ASSAULT WITH A FIREARM	2010	06-14-11	X				X	
* 04	PC	245(A)(2)	ASSAULT WITH A FIREARM	2010	06-14-11	X			X		X
* 05	PC	205	MAYHAM & CAUSING PERM. DISABILITY OF A LIMB	2010	06-14-11	X				X	
* 06	PC	206	TORTURE & CAUSING CRUEL & EXTREMELY PAIN & SUFFERING	2010	06-14-11	X			X		X

2. ENHANCEMENTS charged and found to be true TIED TO SPECIFIC COUNTS (mainly in the PC 12022 series). List each count enhancement horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

COUNT	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
03	186.22(B)(1)PC	10Y	12022.5(A)PC	10Y	12022.7(A)PC	3Y	23 0
04	186.22(B)(1)PC	S	12022.5(A)PC	S	12022.7(A)PC	S	
05	186.22(B)(1)PC	10Y	12022.53(D)PC	25Y			35 0
06	12022.5(A)PC	S	12022.7(A)PC	S			

3. ENHANCEMENTS charged and found to be true FOR PRIOR CONVICTIONS OR PRISON TERMS (mainly in the PC 667 series). List all enhancements horizontally. Enter time imposed for each or "S" for stayed. DO NOT LIST ANY STRICKEN ENHANCEMENT(S).

ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	ENHANCEMENT	TIME IMPOSED OR "S" FOR STAYED	TOTAL
3) 667(A)(1)PC	5Y	667.5(B)PC	1Y	667.5(B)PC	1Y	7 0
5) 667(A)(1)PC	5Y					5 0
6) 667(A)(1)PC	S					

Defendant was sentenced to State Prison for an INDETERMINATE TERM as follows:

4. ☐ LIFE WITHOUT THE POSSIBILITY OF PAROLE on counts _____
5. ☐ LIFE WITH THE POSSIBILITY OF PAROLE on counts _____
6. a. ☐ 15 years to Life on counts _____ c. ☐ years to Life on counts _____
- b. ☒ 25 years to Life on counts 3,4,5,6 x d. ☐ years to Life on counts _____
- PLUS enhancement time shown above.
7. ☐ Additional determinate term (see CR-290).
8. Defendant was sentenced pursuant to ☒ PC 667(b)-(l) or PC 1170.12 ☐ PC 667.61 ☐ PC 667.7 ☐ other (specify):

This form is prescribed under PC 1213.5 to satisfy the requirements of PC 1213 for indeterminate sentences. Attachments may be used but must be referred to in this document.

Page 1 of 2

PEOPLE OF THE STATE OF CALIFORNIA vs. DEFENDANT: SHAWN STEWART JACKSON			
MA051433-01	-A	-B	-C
			-D

9. FINANCIAL OBLIGATIONS (plus any applicable penalty assessments):

a. Restitution Fine(s):

Case A: \$10,000 per PC 1202.4(b) forthwith per PC 2085.5; \$10,000 per PC 1202.45 suspended unless parole is revoked.
 Case B: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 Case C: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.
 Case D: \$ per PC 1202.4(b) forthwith per PC 2085.5; \$ per PC 1202.45 suspended unless parole is revoked.

b. Restitution per PC 1202.4(f):

Case A: \$ ☒ Amount to be determined to ☒ victim(s)* ☐ Restitution Fund
 Case B: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case C: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund
 Case D: \$ ☐ Amount to be determined to ☐ victim(s)* ☐ Restitution Fund

☐ * Victim name(s), if known, and amount breakdown in item 11, below. ☐ * Victim names(s) in probation officer's report.

c. Fine(s):

Case A: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case B: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case C: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense
 Case D: \$ per PC 1202.5. \$ per VC 23550 or days ☐ county jail ☐ prison in lieu of fine ☐ concurrent ☐ consecutive
☐ includes: ☐ \$50 Lab Fee per HS 11372.5(a) ☐ \$ Drug Program Fee per HS 11372.7(a) for each qualifying offense

d. Court Security Fee: \$160.00 per PC 1465.8.

e. Criminal Conviction Assessment: \$ per GC 70373.

10. TESTING a. ☐ Compliance with PC 296 verified b. ☐ AIDS per PC 1202.1 d. ☐ other (specify):

11. Other orders (specify):

DEFENDANT TO PAY AN IMMEDIATE AND CRITICAL NEEDS FINE OF \$120.00 PURSUANT TO SB 1407. DEFENDANT WAIVES PRESENCE FOR RESTITUTION HEARING SET FOR 8/31/11.

12. IMMEDIATE SENTENCE:

☐ Probation to prepare and submit
Post-sentence report to CDCR per PC 1203c.

Defendant's race/national origin: WHI

13. EXECUTION OF SENTENCE IMPOSED:

- a. ☒ at initial sentencing hearing.
 b. ☐ at resentencing per decision on appeal.
 c. ☐ after revocation of probation.
 d. ☐ at resentencing per recall of commitment. (PC1170(d).)
 e. ☐ other (specify):

14. CREDIT FOR TIME SERVED

CASE	TOTAL CREDITS	ACTUAL	LOCAL CONDUCT
A	241	210	031 ☐ 4019 ☐ 2933.1
B			☐ 4019 ☐ 2933.1
C			☐ 4019 ☐ 2933.1
D			☐ 4019 ☐ 2933.1
Date Sentence Pronounced:		Time Served in State Institution:	
07-27-11		DMH	CDCR CRC

15. The defendant is remanded to the custody of the sheriff ☒ forthwith ☐ after 48 hours excluding Saturdays, Sundays, and holidays.
 To be delivered to ☒ the reception center designated by the director of the California Department of Corrections and Rehabilitation.
☐ other (specify):

CLERK OF THE COURT

I hereby certify the foregoing to be a correct abstract of the judgment made in this action.

DEPUTY'S SIGNATURE Tina Coats 07-29-11

CR-292 (Rev. July 1, 2009)

ABSTRACT OF JUDGMENT - PRISON COMMITMENT - INDETERMINATE

Page 2 of 2